

**Before the  
FEDERAL MARITIME COMMISSION**

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Docket No. 22-21  
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MSRF, Inc.  
v.  
YANG MING TRANSPORT CORPORATION  
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**RESPONDENT’S REVISED MOTION FOR CONFIDENTIAL TREATMENT OF  
CERTAIN DOCUMENTS**

**AND**

**RESPONSE TO COMPLAINANT’S MOTION FOR CONFIDENTIAL TREATMENT  
OF CERTAIN DOCUMENTS**

Pursuant to the Order of the Presiding Officer of May 30, 2023 her Initial Order dated August 22, 2022, the rules of the Federal Maritime Commission at 46 C.F.R. 502.14(j)(1) and 502.5(a)(2)(ii), Respondent Yang Ming Marine Transport Corporation (“Yang Ming” or “Respondent”) respectfully requests, for good cause detailed below, that the information submitted in its Confidential Brief in Opposition, Respondents’ Responses to Complainant’s Proposed Findings of Fact, Respondent’s Proposed Findings of Fact, and Respondent’s Appendix, as identified in the below “confidential documents table” be kept confidential by the Commission and not released to the public.

Counsel for Respondent has conferred with Counsel for MSRF, Inc. (“MSRF” or “Complainant”) with respect to the material for which it requests confidential treatment (most of which were produced by Respondent). Counsel for Respondent has informed us that they have no comments on the proposed confidential table.

As per the Presiding Officer's guidance, Respondent has been careful not to over-designate material as confidential, and does not make any requests for confidential treatment for information that it has previously disclosed.

Respondent has likewise used a light touch in its redactions of the Opposition Brief, the Responses to Complainant's Proposed Findings of Fact, and Respondent's Findings of Fact. As instructed by the Presiding Officer and the Commission's rules, these documents have all been submitted in proposed Confidential and Public Versions.

Good cause for confidential treatment of the identified documents is based on the fact the information for which confidential treatment is sought is commercially sensitive and the disclosure of which may cause Respondent commercial harm. This information includes the terms of the confidentially-filed Service Contract. Respondent notes that the Shipping Act and the Commission's rules provide for such confidentiality. 46 U.S.C. 40502(b)(1); 46 C.F.R. 530.4 ("All service contracts and amendments to service contracts filed with the Commission shall, to the full extent permitted by law, be held in confidence.").

In an effort to assist the Presiding Officer in making determinations of treatment of the information contained in the record of this proceeding, Respondent also responds to Complainant's motion filed June 9, 2023. Respondent objects to disclosure of information in Complainant's Revised Confidential Appendix as noted in Respondent's Confidential Table below. Complainant objects to the public disclosure of service contract and amendment terms that are commercially sensitive as well as entitled to protection pursuant to the Shipping Act. Together with this Response to Complainant's Motion for Confidential Treatment, we are submitting a pdf file entitled, Respondent's Objections to Complainant's Revised Appendix **Confidential Version** showing the disclosures to which we object.

## CONFIDENTIAL TABLE

| <b><i>Bates Range or Page Numbers</i></b> | <b><i>Description</i></b>                            | <b><i>Classification Requested for</i></b> | <b><i>Basis for Confidentiality Request</i></b>                                                 |
|-------------------------------------------|------------------------------------------------------|--------------------------------------------|-------------------------------------------------------------------------------------------------|
| <b><i>Complainant's Appendix</i></b>      |                                                      |                                            |                                                                                                 |
| CX_0020                                   | Confidential Service Contract No. 494721             | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_0035                                   | Confidential Service Contract No. 494721 Amendment 2 | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_0052                                   | Confidential Service Contract No. 494721 Amendment 2 | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_00067                                  | Confidential Service Contract No. 494721 Amendment 3 | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_00084                                  | Confidential Service Contract No. 494721 Amendment 4 | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_00099                                  | Confidential Service Contract No. 494721 Amendment 5 | Marked information                         | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_00114                                  | Confidential Service Contract No. 494721 Amendment 6 | Marked information                         | Commercially sensitive terms, filed confidentially with                                         |

|                                     |                                                                       |                    |                                                                                                 |
|-------------------------------------|-----------------------------------------------------------------------|--------------------|-------------------------------------------------------------------------------------------------|
|                                     |                                                                       |                    | FMC and subject to statutory protection                                                         |
| CX_00129                            | Confidential Service Contract No. 494721 Amendment 7 (TPWB)           | Marked information | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| CX_0144                             | Confidential Service Contract No. 494721 Amendment 7 (TPEB)           | Marked information | Commercially sensitive terms, filed confidentially with FMC and subject to statutory protection |
| <b><i>Respondent's Appendix</i></b> |                                                                       |                    |                                                                                                 |
| RX_000004                           | Confidential Service Contract No. 494721 Appendix (TPEB)              | Material indicated | Commercially sensitive terms; filed confidentially with FMC and subject to statutory protection |
| RX_000008-000010                    | Confidential Service Contract No. 494721 Appendix (TPEB)              | Material indicated | Commercially sensitive rate and term information                                                |
| RX_000014                           | Confidential Service Contract No. 494721 Appendix, Amendment 7 (TPEB) | Material indicated | Commercially sensitive rate information                                                         |
| RX_000018                           | Confidential Service Contract No. 494721 Appendix Amendment 7 (TPEB)  | Material indicated | Commercially sensitive rate information                                                         |
| RX_000023                           | Confidential Service Contract No. 494721 Appendix Amendment 7 (TPEB)  | Material indicated | Commercially sensitive rate and term information                                                |
| RX_000024                           | Confidential Service Contract No. 494721 Appendix                     | Material indicated | Commercially sensitive rate and term information                                                |

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|-------------------------|----------------------------------------------------------------------|--------------------|-------------------------------------------------------------------------------------------------------------|
|                         | Amendment 7<br>(TPEB)                                                |                    |                                                                                                             |
| RX_000029-<br>RX_000034 | Confidential Service<br>Contract No. 494721<br>Terms (“boilerplate”) | Entire pages       | Commercially<br>sensitive terms; filed<br>confidentially with<br>FMC and subject to<br>statutory protection |
| RX_000215               | Email between<br>MSRF and Yang<br>Ming                               | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000217               | Email between<br>MSRF and Yang<br>Ming                               | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000220-<br>RX_000223 | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000238               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000241               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000257-<br>RX_000272 | Emails between<br>MSRF and Yang<br>Ming                              | Entire pages       | Commercially<br>sensitive service<br>contract negotiations                                                  |
| RX_000285               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000288               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Marked confidential<br>in Complainant’s<br>CX_0154                                                          |
| RX_000293               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |
| RX_000296               | Emails between<br>MSRF and Yang<br>Ming                              | Material indicated | Commercially<br>sensitive rate<br>information                                                               |

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|------------------------------------------------------|--------------------------------|--------------------|-------------------------------------------------------------------------------------------------|
| RX_000308                                            | Exhibit A to Goeke Declaration | Material indicated | Confidential and commercially sensitive rate information                                        |
| <b><i>Respondent's Proposed Findings of Fact</i></b> |                                |                    |                                                                                                 |
| Pages 5-6                                            | RPFF26                         | Material indicated | Confidential and commercially sensitive service contract terms                                  |
| Pages 6-8                                            | RPFF28                         | Material indicated | Confidential and commercially sensitive service contract terms                                  |
| <b><i>Respondent's Opposition Brief</i></b>          |                                |                    |                                                                                                 |
| Pages 5,6,7,9,10,46,63                               | Service Contract Articles      | Material indicated | Commercially sensitive terms; filed confidentially with FMC and subject to statutory protection |

Dated: June 15, 2023

Respectfully submitted,

By: /s/ Rebecca A. Fenneman  
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## **CERTIFICATE OF SERVICE**

I certify that on the 15<sup>th</sup> day of June, 2023, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

### **ATTORNEYS FOR COMPLAINANT:**

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